Prison Rape Elimination Act (PREA) of 2003

Sexual Abuse Annual Report 2022-2023

Introduction

All divisions of the Department of Adult Correction protect the public by collaboratively focusing on rehabilitation, protection, innovation, accountability, and professionalism.

NCDAC employees supervise offenders in institutions, community confinement facilities, and in communities for those on probation, parole, and post release. The vision of the agency is that all divisions of the Department of Adult Correction will work collaboratively to create a safer North Carolina. The core values to be successful in meeting this mission and vision is through PRIDE: Protect - Respect - Integrity - Diversity – Excellence. It is with that same PRIDE that we strive to comply with national best practices and laws.

The Prison Rape Elimination Act of 2003 (PREA) was enacted by Congress to address the problem of sexual abuse and sexual harassment of persons in the custody of U.S. correctional agencies. The Act applies to all public and private institutions that house adult offenders, residents or juvenile offenders and is also relevant to community-based agencies. The PREA National Standards were promulgated in August 2012. These standards established nationwide consistency in practices covering the areas of detection, prevention, reduction, and punishment of prison rape in confinement facilities.

NCDAC is committed to a standard of zero-tolerance of any personal misconduct between employees and offenders or residents. We are committed to providing professional and appropriate services to our offender population and supporting staff in accomplishing these responsibilities. NCDAC 's mission is to protect the public by collaboratively focusing on rehabilitation, protection, innovation, accountability, and professionalism. PREA fits perfectly with that mission. Each employee is vital to the prevention and detection of offender/resident sexual abuse in order to protect offenders and safeguard our communities.

Pursuant to PREA National Standards §115.88, §115.288 and §115.388 data review for corrective action, the agency prepares an annual report of its findings and corrective actions for each facility. This report summarizes and compares the agency's accomplishments during the calendar year 2022 and 2023.

Message from the Secretary

Sexual abuse and sexual harassment in the correctional environment have a significant impact for both the criminal justice system and general public. The Prison Rape Elimination Act of 2003 (PREA) was enacted in recognition of the strong evidence that victims of sexual abuse suffer severe physical and psychological effects that may hinder their ability to reintegrate into the community upon their release.

The North Carolina Department of Adult Correction (NCDAC) is committed to a zero-tolerance standard by maintaining a program of prevention, detection, response, investigation, prosecution, and tracking. As required by PREA National Standards §115.88, §115.288, and §115.388, this annual report presents a summary of substantiated incidents of sexual abuse in confinement for the calendar years 2022-2023 and the corrective actions taken by the Department in response. This report also provides an assessment of the Department's progress in addressing sexual abuse in the previous calendar year. Our focus continues to be achieving sexual safety and to approach corrective action as a positive opportunity to achieve long-term, meaningful change within facilities under our operational control.

NCDAC prides itself on being proactive and focused on prevention to maintain the highest standards of correctional and rehabilitative treatment. The Department relies on stakeholders to assist in achieving its zero-tolerance goal and welcomes community partnerships to further its efforts.

Sincerely,

Todd E. Ishee

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Overview: North Carolina Department of Adult Correction

The NC Department of Adult Correction will uphold the law and protect the public by collaboratively focusing on rehabilitation with accountability and professionalism. The Department's organizational structure includes the following divisions and sections:

- Operations
  - State's Adult Correction Institutions
  - Community Supervision
  - Correctional Enterprises
  - Emergency Preparedness
- Administration
  - Budget
  - Internal Audit
  - Purchasing
  - Controller's Office
  - Human Resources
  - Information Technology
  - Workforce Management
- Chief of Staff
  - Professional Standards
    - Accreditation
    - Administrative Analysis
    - Innovation
    - Policy Management
    - PREA
    - Quality Assurance
    - Strategic Management
  - Communications Office
  - Internal Affairs and Intelligence Operations
    - Special Operations and Intelligence
    - Combined Records
    - Internal Investigations and Apprehensions
  - Legislative Affairs
- Rehabilitative & Correction Services
  - Comprehensive Health Services
  - Rehabilitative/Reentry
  - Education Services
  - Support Services
- General Counsel
  - Legal

- ADA Office
- Grievance Resolution Board

NCDAC is responsible for the care, custody, and supervision of all adults and juveniles sentenced after conviction for violations or adjudicated for delinquent acts under North Carolina law. Adult offenders, including youthful offenders, face sentences ranging from probation served in the community to active prison sentences served in one of the state's institutions. After prison, there is a period of post-release supervision for offenders to help them transition successfully back to the community. For offenders who commit technical violations of probation, they are remanded to Confinement in Response to Violation (CRV) facilities.

Mission

All divisions of the Department of Adult Correction protect the public by collaboratively focusing on rehabilitation, protection, innovation, accountability, and professionalism.

Vision

All divisions will work collaboratively to create a safer North Carolina.

Core Values

To Protect, Respect, Integrity, Diversity, Excellence- PRIDE in what we do!

NCDAC Strategic Plan in the PREA Program

The Division of Professional Standards: PREA Office strives to meet the strategic plan by the following addressing the goals and objectives indicated below:

1. Support Our Employees
    a. Meeting training needs to develop a high-performing and effective workforce.
    b. Holding employees accountable for their actions when the PREA policy and agency's zero tolerance standard is violated.
    c. By supporting the well-being of employees by providing technical assistance and finding more efficient and effective ways of meeting duties as assigned.
2. Safely Manage and Support Offenders from Custody through Reentry

   a. Ensuring sexual safety assessments at facilities to prevent, detect, track, and respond to allegations of sexual violence.
   b. Provide offenders access to outside confidential support services offered by local rape crisis centers across the state of NC.
   c. Provide avenues for victims of offender sexual violence to seek support after release.
3. Strengthen Safety and Security at All NCDAC Locations
   a. Identify sustainable renovations and updated technology to enhance safety and security.
   b. Prepare employees to adequately respond to emergencies through the development of a coordinated response plan.
   c. Develop a statewide plan to increase safety and security while meeting privacy mandates under the national standards in bathroom areas within institutions.
4. Operate Effectively and Efficiently
   a. Identify ways to strengthen PREA efforts among divisions.
   b. Expand organizational efficiency and pursue innovative solutions for operational improvement.
   c. Support the professionalization of our workforce by meeting nationally recognized standards for the Prison Rape Elimination Act (PREA).
5. Increase Transparency of the NCDAC's Missions and Operations
   a. Increase employee's awareness and understanding if operational decisions and requirements through improved internal communication.
   b. Publicize the positive work performed by NCDAC divisions through improved external and internal communications.

The agency's complete strategic plan is available for review here.

Departmental Accomplishments

PROGRAM ADMINISTRATION

1. Attended 2023 National PREA Coordinator's Conference in Washington, DC to learn and share the latest trends in PREA implementation, compliance, and sexual safety of offenders and staff.
2. Attended 2023 Winter American Correctional Association conference in Orlando, FL.
3. Made program structure changes in data management.
4. Implemented process improvements to the PREA program. As a result, sexual abuse and sexual harassment investigation completion rate improved by 70 percent.
5. Submitted policy recommendations for Institutions Policy Chapter F. 1600, Management of Security Posts.
6. Developed department level policy in collaboration with NCDAC Office of Policy Management.

PREVENTION

1. In response to §115.16, which involves offenders with disabilities and offenders who are limited English proficient, the PREA office staff did the following:
    a) Planned and attended meetings in response to ADA efforts.
    b) Distributed ADA educational posters statewide.
    c) Provided PREA related training to ADA facility staff at ADA Conference.
    d) Training Coordinator participated in the "Different Different World Simulation Events". The goal was to bring awareness to what the offender population is dealing with in the deaf and hard of hearing community.
2. In response to §115.15, limits to cross-gender viewing and searches, the agency worked with Central Engineering, Facility Maintenance and PREA to identify an operational plan to address shower curtains in facilities with an expressed need to provide adequate privacy and maintaining safety and security.
3. Fifty-nine staffing analysis reviews completed in accordance with standards.

RESPONSE

1. Attended quarterly meetings with Institutions Regional Directors to discuss program status by facility, review of statistical data by regions, enhanced program management, and continued compliance with agency policy and PREA National Standards.
2. Conducted internal assessments across institutions to evaluate the implementation of the Department's PREA program.
3. Enhanced existing screening protocols to identify potential high-risk victims, reporting and reviewed protocols to assist facility management in determining housing, bed, work, education, and program assignments.

4. Completed a staffing plan analysis for every facility statewide in accordance with PREA National Standards.
5. Provided Institutions facility management with critical updates and corrective action plans during regional meetings. Participants included Region Directors, Region Security Coordinators, Wardens, and Associate Wardens.
6. Conducted virtual meetings with Institutions to address any identified PREA related concerns and provided updates to each of the following: Facility Management, PREA Investigators, PREA Compliance Managers, Support Staff, and Region Staff.
7. Conducted meetings with Institutions PREA Compliance Managers to discuss corrective action plans for statewide consistency.
8. Continued to manage reported allegations of sexual abuse and sexual harassment external to the agency made by offenders, through Project Offender Reporting Sexual Abuse (O.R.S.A.).

TRAINING AND EDUCATION

1. Conducted virtual meetings with PREA Compliance Managers, PREA Support staff and PREA Investigators to provide on-going support.
2. Conducted training with the NCDAC Office of Internal Affairs (OIA) in accordance with National PREA Standards.
3. As a member of the National PREA Coordinators Working Group, the Director assisted with the planning of the 2023 conference for National PREA Coordinators.
4. Conducted meetings at facilities with Sexual Abuse Response Team (SART) to include Wardens, PREA Compliance Managers, PREA SAH Investigators, PREA Support Persons, to ensure PREA compliance, and reinforce understanding of the PREA standards.
5. Implemented a monitoring process for the compliance with PREA standards for all/any contracted facilities housing offenders for NCDAC.
6. Conducted Case Analyst training for thirty-two Diagnostic Staff on screening.
7. Maintained eLearning certification courses for PREA Specialized Investigator Training, PREA Compliance Manager and PREA Support Person Training.
8. Conducted critical training updates on Safe Search Practices to certified General Instructors, Wardens and PREA Compliance Managers.
9. Conducted Green Belt Process Improvement Trainings on investigations for PREA Investigators, Wardens, Regions Security Coordinators, PREA Compliance Managers.

Definitions Related to Sexual Abuse and Sexual Harassment

Sexual Abuse

For purposes of this report and statistical data, sexual abuse includes:

1. Sexual abuse of an offender, detainee, or resident by another offender, detainee, or resident; and

2. Sexual abuse of an offender, detainee, or resident by a staff member, contractor, or volunteer.

Sexual abuse of an offender, detainee, or resident by another offender, detainee, or resident includes any of the following acts, if the victim does not consent, is coerced into such act by overt or implied threats of violence, or is unable to consent or refuse:

1. Contact between the penis and the vulva or the penis and the anus, including penetration, however slight.

2. Contact between the mouth and the penis, vulva, or anus.

3. Penetration of the anal or genital opening of another person, however slight, by a hand, finger, object, or other instrument; and

4. Any other intentional touching, either directly or through the clothing, of the genitalia, anus, groin, breast, inner thigh, or the buttocks of another person, excluding contact incidental to a physical altercation.

Sexual abuse of an offender, detainee, or resident by a staff member, contractor, or volunteer (NOTE: previously staff sexual misconduct) includes any of the following acts, with or without consent of the offender, detainee, or resident:

1. Contact between the penis and the vulva or the penis and the anus, including penetration, however slight.

2. Contact between the mouth and the penis, vulva, or anus.

3. Contact between the mouth and any body part where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.

4. Penetration of the anal or genital opening, however slight, by a hand, finger, object, or other instrument, that is unrelated to official duties or where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.

5. Any other intentional contact, either directly or through the clothing, of or with the genitalia, anus, groin, breast, inner thigh, or the buttocks, that is unrelated to official duties or where the staff member, contractor, or volunteer has the intent to abuse, arouse, or gratify sexual desire.

6. Any attempt, threat, or request by a staff member, contractor, or volunteer to engage in the activities described in items (1)-(5) of this section.

7. Any display by a staff member, contractor, or volunteer of his or her uncovered genitalia, buttocks, or breast in the presence of an offender, detainee, or resident, and;

8. Voyeurism by a staff member, contractor, or volunteer. Voyeurism by a staff member, contractor, or volunteer means an invasion of privacy of an offender, detainee, or resident by staff for reasons unrelated to official duties, such as peering at an offender who is using a toilet in his or her cell to perform bodily functions; requiring an offender to expose his or her buttocks, genitals, or breasts; or taking images of all or part of an offender's naked body or of an offender performing bodily functions.

Sexual Harassment

1. Repeated and unwelcome sexual advances, requests for sexual favors, or verbal comments, gestures, or actions of a derogatory or offensive sexual nature by one offender, detainee, or resident directed toward another: and;

2. Repeated verbal comments or gestures of a sexual nature to an offender, detainee, or resident by a staff member, contractor, or volunteer, including demeaning references to gender, sexually suggestive or derogatory comments about body or clothing, or obscene language or gestures.

Comparative Data

2023: The Department's Year in Review

During the 2023 calendar year, NCDAC received a total of **746** offender and juvenile sexual abuse and sexual harassment allegations. The following outlines the total number of incidents reported and the outcome of investigations in 2023.

2023					
Incident Type	**Substantiated**	**Unsubstantiated**	**Unfounded**	**Ongoing**	**Total**
Offender on Offender Abusive Sexual Contact	**12**	123	38	0	**173**
Offender on Offender Nonconsensual Sexual Acts	**1**	11	3	0	**15**
Offender on Offender Sexual Harassment	**21**	148	39	0	**208**
Staff on Offender Sexual Abuse	**17**	80	126	0	**223**
Staff on Offender Sexual Harassment	**3**	73	51	0	**127**
Total Allegations Received	**54**	**435**	**257**	**0**	**746**

Table 2: 2023 Incident Reports and Outcomes thru December 31, 2023. New reports received from allegations in previous years may affect data collection.

2023 Substantiated Sexual Abuse Cases with Corrective Actions

2023	
Facility	**Corrective Action(s)**
ALBEMARLE CI	1. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 2. Alleged aggressors placed in special management unit.
ALEXANDER CI	1. Distributed PREA Posters throughout the facility.

	2. Discussed PREA related topics in shift line-ups.
ANSON CI	1. Distributed information on ways for offenders to report PREA allegations. 2. Discussed PREA related topics in shift line-ups.
AVERY MITCHELL	1. Reassessed the appropriateness of certain staff in PREA-related roles. 2. Distributed PREA Posters throughout the facility. 3. Distributed information on ways for offenders to report PREA allegations. 4. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 5. Aggressor transferred to another facility. Completed disciplinary action on the aggressor.
CALDWELL	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to bed, job, and/or program assignments protocols. 3. Distributed information on ways to report for population. 4. Discussed PREA related topics in shift line-ups. 5. Conducted a sexual safety assessment. 6. Victim was placed in Special Management and aggressor was reassigned in his assigned job due to proximity to victim.
CASWELL CC	1. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 2. Distributed PREA posters throughout the facility. 3. Distributed information on ways to report for population. 4. Distributed first responder cards to all staff. 5. Discussed PREA related topics in shift line-ups. 6. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 7. Offender was transferred to another facility, and he did special management for his actions. Staff were reminded of making their required rounds. We made sure that all the PREA posters were posted and the reporting procedures were posted.
CATAWBA CC	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Distributed PREA posters throughout the facility. 3. Distributed information on ways for offenders to report PREA allegations. 4. Distributed first responder cards for all staff.
CRAVEN CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Distributed PREA Posters throughout the facility. 3. Distributed information on ways for offenders to report PREA allegations. 4. Distributed first responder cards to all staff. 5. Discussed PREA related topics in shift line-ups. 6. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
EASTERN CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Distributed PREA posters throughout the facility. 3. Discussed PREA related topics in shift line-ups.

	4. Alleged Aggressor was placed on Special Management Unit pending investigation. Alleged Aggressor was transferred to another facility on 11/21/23 because of being removed from PCON housing where the incident occurred.
FRANKLIN CI	1. Made revisions to facility standard operating procedures. 2. Conducted a sexual safety assessment.
HARNETT CI	1. Made upgrades to technology (such as mirrors, motions lights, or cameras) in the area in which the incident occurred. 2. Distributed first responder cards to all staff. 3. Discussed PREA related topics in shift line-ups. 4. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
JOHNSTON CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Made changes to the number and placement of supervisory staff in the area in which an incident occurred. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 4. Distributed PREA posters throughout the facility. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways for offenders to report PREA allegations. 7. Discussed PREA related topics in shift line-ups. 8. Conducted town hall meetings with population to discuss prevention. 9. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 10. Staff resigned.
LUMBERTON CI	1. Distributed PREA posters throughout the facility. 2. Distributed information on ways for offenders to report PREA allegations. 3. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
MAURY CI	1. Aggressor was placed in Special Management Unit.
NASH CI	1. Distributed PREA posters throughout the facility. 2. Distributed information on ways for offenders to report PREA allegations. 3. The Sexual Aggressor received disciplinary action and was demoted to a higher custody level and transferred based on the actions taken. 4. Made changes to the number and placement of supervisory staff in the area in which an incident occurred. 5. Distributed information on ways for offenders to report PREA allegations. 6. The sexual aggressor (staff) was placed on administrative re-assignment and all matters were handled by local law enforcement. The staff member eventually resigned.
NCCIW	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassess the appropriateness of certain staff in PREA-related roles. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 4. Distributed PREA posters throughout the facility. 5. Made changes to bed, job, and/or programs assignments protocols. 6. Distributed first responder cards to all staff. 7. Conducted town hall meetings with population to discuss prevention.

	8. Distributed information on ways for offenders to report PREA allegations. 9. Discussed PREA related topics in shift line-ups. 10. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
NEUSE CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Discussed PREA related topics in shift line-ups. 5. Held a facility management meeting to discuss ways to improve sexual safety in the facility.
PAMLICO CI	1. The alleged aggressor was removed immediately to Special Management Unit once the allegation was made. Once the investigation was complete, the offender was transferred directly from Special Management Unit to another facility.
PENDER CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motions lights, or cameras) in the area in which the incident occurred. 3. Distributed PREA posters throughout the facility. 4. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 5. Required the Offender population to complete additional PREA related education. 6. Distributed information on ways for offenders to report PREA allegations. 7. Reassessed the appropriateness of certain staff in PREA-related roles. 8. Discussed PREA related topics in shift line-ups. 9. Held a facility management meeting to discuss ways to improve sexual safety in the facility.
ROANOKE RIVER CI	1. Made revisions to facility standard operating procedures. 2. The facility changed its procedures on when the programs offices would be cleaned and who would be authorized to be in the program's areas and when.
ROBESON CRV	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 4. Required the Offender population to complete additional PREA related education. 5. Distributed information on ways for offenders to report PREA allegations. 6. Conducted town hall meetings with population to discuss prevention. 7. Held a facility management meeting to discuss ways to improve sexual safety in the facility. 8. An offender was monitored in the general population, until transferred to another facility due to an unrelated incident.

SOUTHERN CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Reassessed the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Distributed information on ways for offenders to report PREA allegations. 5. Discussed PREA related topics in shift line-ups. 6. Conducted town hall meetings with population to discuss prevention. 7. Conducted a sexual safety assessment.

2022: The Department's Year in Review

During the 2022 calendar year, NCDAC received a total of **766** offender and resident sexual abuse and sexual harassment allegations. The following outlines the total number of incidents reported and the outcome of investigations in 2022.

2022					
Incident Type	**Substantiated**	**Unsubstantiated**	**Unfounded**	**Ongoing**	**Total**
Offender on Offender Abusive Sexual Contact	**10**	**106**	**42**	**0**	**158**
Offender on Offender Nonconsensual Sexual Acts	**4**	**12**	**4**	**0**	**20**
Offender on Offender Sexual Harassment	**9**	**159**	**42**	**0**	**210**
Staff on Offender Sexual Abuse	**19**	**121**	**100**	**0**	**240**
Staff on Offender Sexual Harassment	**2**	**70**	**66**	**0**	**138**
Total Allegations Received	**45**	**471**	**250**	**0**	**766**

Table 1: 2022 Incident Reports and Outcomes thru December 31, 2022. New reports and annual data validation received from allegations in previous years may affect data collection. This chart was updated based on current data for completion of investigations and valdiation in 2024.

2022 Substantiated Sexual Abuse Cases with Corrective Actions

2022	
Facility	**Corrective Action(s)**
ALBEMARLE CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to bed, job, and/or program assignments protocols. 3. The aggressor resigned prior to completion of the investigation.
ALEXANDER CI	1. Discussed PREA related topics in shift line-ups. 2. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 3. This case involved an offender that manipulated a staff member into a relationship to facilitate smuggling drugs into the facility. The offender was placed in Special Management Unit and later transferred and after an investigation the employee was arrested by law enforcement at the facility and resigned.
ANSON CI	1. Distributed information on ways to report for population. 2. Discussed PREA related topics in shift line-ups. 3. Abuser received disciplinary action for inappropriately touching offender. 4. Abuser received disciplinary action and was removed from ACDP Program.
CALDWELL CC	1. In both cases the offenders who were the aggressors were removed from the unit and placed in Special Management Unit. Disciplinary action was taken in both cases. Neither offender returned to their unit nor had future contact with the victims.
CASWELL CC	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. The offender aggressor in this case was placed in Special Management Unit for investigation of this incident. The offender victim has been promoted to Minimum Custody and transferred after this incident occurred. The victim was released from the agency's custody two months later in September of 2022.
EASTERN CI	1. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 2. Distributed PREA Posters throughout the facility. 3. Distributed information on ways to report for population. 4. Discussed PREA related topics in shift line-up. 5. The aggressors were removed from Protective Custody and transferred
GREENE CI	1. Discussed PREA related topics in shift line-ups. 2. Conducted town hall meetings with population to discuss prevention.
HARNETT CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 4. Required the population to complete additional education. 5. Distributed PREA posters throughout the facility.
JOHNSTON CI	1. Made changes to bed, job, and/or program assignments protocols. 2. Conducted town hall meetings with population to discuss prevention. 3. Discussed PREA related topics in shift line-ups.

	4. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 5. Victim was transferred to another facility.
LINCOLN CC	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents.
LUMBERTON CI	1. Made changes to bed, job, and/or program assignments protocols. 2. Made changes to medical and/or mental health protocols or responses. 3. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
MAURY CI	1. An interview was conducted with staff Member; the staff member resigned during the interview. 2. An incident report and internal investigation was conducted into the incident. 3. The offender aggressor was placed on Special Management Unit and was later transferred to another Facility.
MOUNTAIN VIEW CI	1. PREA Incident Review was completed on December 19, 2022. This substantiated case was an offender grabbing another offender. PREA protocols were followed. This incident was reported to staff when happened. Video footage obtained supported allegations.
NCCIW	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Made upgrades to technology (such as mirrors, motion lights, or cameras) in the area in which the incident occurred. 3. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 4. Made upgrades to the physical structure of the area in which the incident occurred. 5. Reassess the appropriateness of certain staff in PREA-related roles. 6. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 7. Required the population to complete additional education. 8. Distributed PREA posters throughout the facility. 9. Made changes to bed, job, and/or program assignments protocols. 10. Discussed PREA related topics in shift line-ups. 11. Conducted town hall meetings with population to discuss prevention. 12. Made changes to medical and/or mental health protocols or responses. 13. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility.
NEUSE CI	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training. 3. Made changes to bed, job, and/or program assignments protocols. 4. Discussed PREA related topics in shift line-ups. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 6. The offender was placed in Special Management Unit and was transferred.
NORTH PIEDMONT CRV	1. Made changes to the number of placements of supervisory staff in the area in which the incident occurred. 2. Required all facility staff to complete Staff and Offender Relationship and Sexual Abuse and Sexual Harassment training. 3. Distributed information on ways for offenders to report PREA allegations.

	4. Conducted town hall meetings with population to discuss prevention. 5. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 6. Pending an investigation alleged staff that involves Staff Abuse/Harassment staff are usually re-assigned, based on the circumstances surrounding the report. 7. Based upon the circumstances involved in the report alleged staff maybe reassigned pending an investigation.
PAMLICO CI	1. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 2. Discussed PREA related topics in shift line-ups. 3. Held a facility management meeting to discuss ways to improve general safety in the facility.
RICHMOND CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassess the appropriateness of certain staff in PREA-related roles. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment training.
ROANOKE RIVER CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Reassess the appropriateness of certain staff in PREA-related roles. 3. Distributed PREA posters throughout the facility. 4. Distributed information on ways to report for population. 5. Distributed first responder cards to all staff. 6. Discussed PREA related topics in shift line-ups. 7. Conducted town hall meetings with population to discuss prevention. 8. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 9. The aggressor resigned. The victim was transferred. All staff completed all annual PREA required trainings immediately following the incident.
SANFORD CC	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 3. Required all facility staff to complete Staff and Offender Relationship and/or Sexual Abuse and Sexual Harassment Training. 4. Discussed PREA related topics in shift line-ups. 5. Camera angle was relocated for better view of entrance way to the shed. 6. Requirements for access to the shed was modified.
SOUTHERN CI	1. Reassess the appropriateness of certain staff in PREA-related roles. 2. Distributed PREA posters throughout the facility. 3. Distributed information on ways to report for population. 4. Discussed PREA related topics in shift line-ups. 5. Conducted town hall meetings with population to discuss prevention. 6. Conducted a sexual safety assessment. 7. Reassignment of staff aggressor to another facility with no offender contact. 8. Offender aggressor was assigned to Special Management Unit until disciplinary action completed, and aggressor could be transferred to another facility. 9. Although offender was on Probation, the Facility Staff aggressor was reassigned to no offender contact for investigation to be completed.
WARREN CI	1. Implemented additional routine or unannounced rounds to prevent future incidents. 2. Made changes to the number and placement of supervisory staff in the area in which the incident occurred. 3. Reassess the appropriateness of certain staff in PREA-related roles.

	4. Distributed PREA posters throughout the facility. 5. Made changes to bed, job, and/or program assignments protocols. 6. Distributed information on ways to report for population. 7. Discussed PREA related topics in shift line-ups. 8. Conducted town hall meetings with population to discuss prevention. 9. Held a facility management meeting to discuss ways to improve prevention of PREA incidences in the facility. 10. Staff member was reassigned to another facility. The staff member eventually resigned from her position. 11. The aggressor was transferred, and the victim was also transferred to different facilities.
WILKES CC	1. Implemented additional routine or unannounced rounds in an effort to prevent future incidents. 2. Made changes to the number of placements of supervisory staff in the area in which the incident occurred. 3. Distributed PREA posters throughout the facility. 4. Made changes to bed, job, and/or program assignments protocols. 5. Distributed information on ways to report for population. 6. Discussed PREA related topics in shift line-ups. 7. Conducted town hall meetings with population to discuss prevention. 8. Made revisions to facility standard operating procedures or procedures. 9. Held a facility management meeting to discuss ways to improve PREA safety in the facility. 10. Both the aggressor and the victim were transported to the hospital for evaluation and evidence collection. Law Enforcement was involved and obtained a warrant to collect evidence. The aggressor was transferred to Special Management Unit and demoted to medium custody. The victim was transferred to regular population at another for his protection.

Table 1: 2022 Incident Reports and Outcomes thru December 31, 2022. New reports received from allegations in previous years may affect data collection.

Comparison Charts for Years 2022-2023

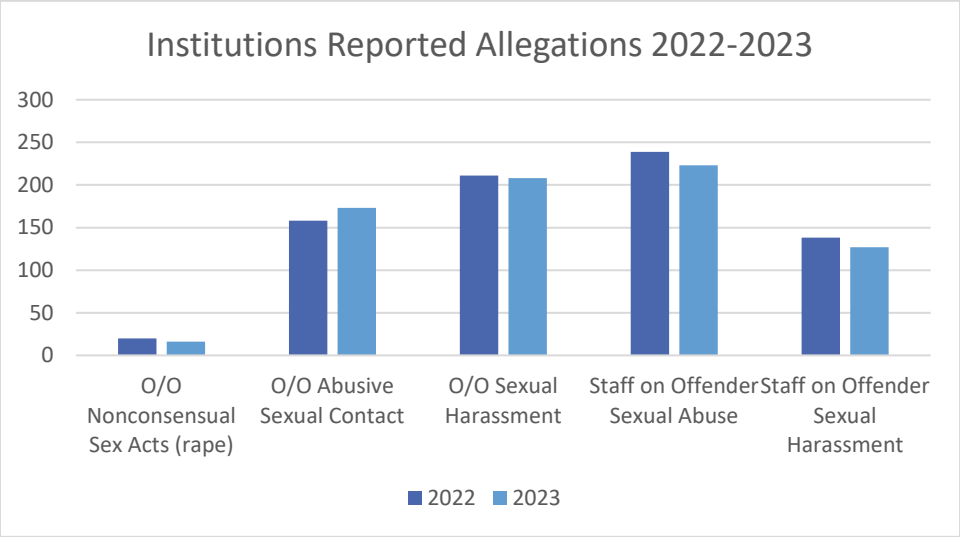


Figure 1: Institutions Reported Allegations for Years 2022-2023

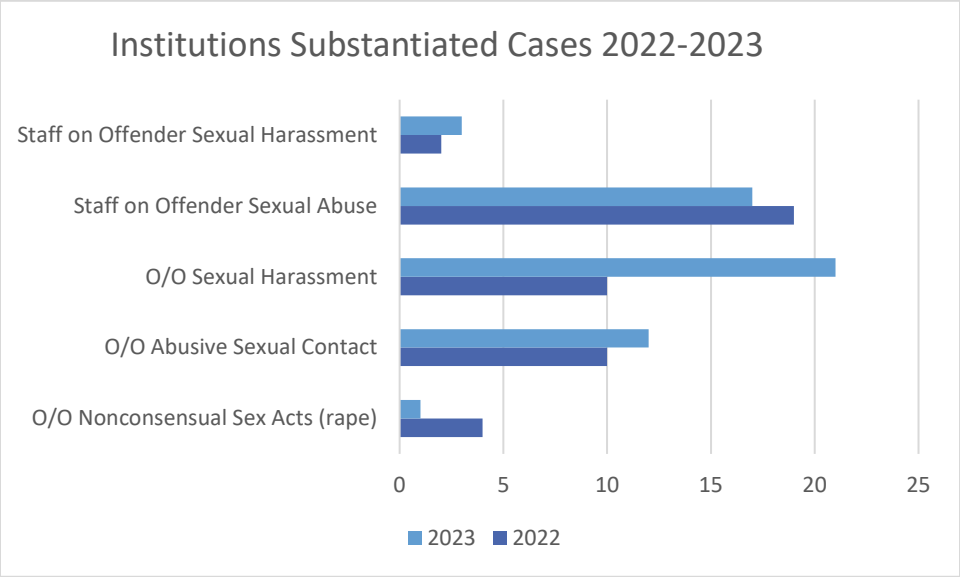


Figure 2: Institutions Substantiated Incidents for Years 2022-2023

Perpetrator Data Overview

Type of Alleged Perpetrator		
	CY 2022	**CY 2023**
Employee	21	20
Contractor	0	0
Volunteer	0	0
Offender	24	34
Youthful Offender	0	0
Unknown	0	0
Total Unique Incidents	**45**	**54**

Figure 3: Substantiated Cases – Allegations by type of Perpetrator

Victim Data Overview

Gender of Alleged Victims		
	CY 2022	**CY 2023**
Male	33	48
Female	11	6

Figure 4: Substantiated Cases – Alleged Victims by Gender

Victims that Identify as a Transgender Offender	
CY 2022	**CY 2023**
3	0

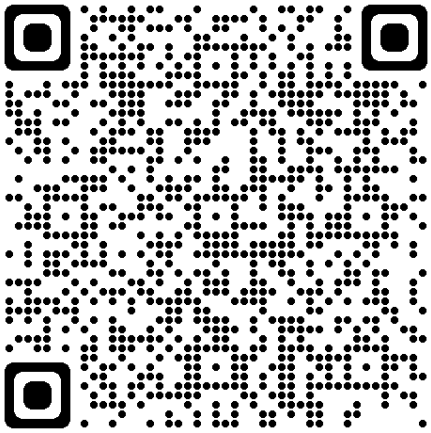
Figure 5: Substantiated Cases – Alleged Victims That Identify as Transgender

Audit Findings

The North Carolina Department of Adult Correction conducted federal compliance audits during audit Cycle IV from August 20, 2022, to August 19, 2025.

- Year 1: August 20, 2022- August 19, 2023,
- Year 2: August 20, 2023- August 19, 2024, and
- Year 3 is August 20, 2024- August 19, 2025.

Findings from these audits and previous audits for audit Cycle I-III are available on the agency's website. This information can be accessed by visiting (click here:) Prison Rape Elimination Act (PREA) Office | NC DAC:



Conclusion

The **2022-2023** annual report speaks to the culture of reporting and zero-tolerance fostered by the North Carolina Department of Adult Correction. The Department remains committed to eliminating sexual abuse and sexual harassment through a program of prevention, detection, response, investigation, data collection, and analysis.

NCDAC is committed to thoroughly, objectively, and promptly investigating every allegation reported. As a result of a comprehensive education and awareness program, bolstered by consistent response, investigative plans, and interviews conducted during federal audits, the resident and offender populations have expressed that they felt safe in facilities, are comfortable reporting allegations of sexual abuse and sexual harassment within our system. Additionally, the training program for staff has resulted in a demonstrated improvement in the zero-tolerance culture and investment in prevention, detection, and response protocols.

The department attributes the increase in allegations received to these improvements within confinement facilities. NCDAC is proud of its improvements in culture, of its policies and procedures, and of its dedication to the elimination of sexual abuse and sexual harassment in confinement.

For more information on this Annual Report, contact the PREA Office at:

Agency Information

North Carolina Department of Adult Correction
PREA Office
5230 Mail Service Center
Raleigh, NC 27699-4201

Telephone: (919) 825-2754
Website: www.dac.nc.gov
Email: SVC_DAC.PREA@dac.nc.gov